

Court No. - 3

Case :- WRIT - C No. - 20423 of 2022

Petitioner :- Ajay Vishvakarma @ Musai Vishvakarma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shivendra Nath Singh

Counsel for Respondent :- CSC, Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent, and Shri Chetan Chatterjee, learned counsel for the respondent no.4.

2. This writ petition has been filed praying for the following reliefs :

"i) a writ, order or direction in nature of certiorari to quash the impugned recovery citation dated 05.08.2021 issued by respondent no.3/Tehsildar, Tehsil-Ghosi, District-Mau against the petitioner in the tune of Rs.3,10,761/- + other charges.

ii) Issue a writ, order or direction in nature of mandamus commanding the authority concerned not to adopt any coercive action against the petitioner for the recovery citation dated 05.08.2021 issued by the respondent no.3/Tehsil, Tehsil-Ghosi, District -Mau against the petitioner in the tune of Rs.3,10,761/- + other charges."

3. Learned counsel for the respondent no.4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the Executive Engineer concerned within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it

shall be decided by the Executive Engineer in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 8.8.2022

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